

# SENATE CHAMBER

STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

No. 1

☐ COMMITTEE AMENDMENT

(Date)

I move to amend Senate Bill No. 346, by substituting the attached floor substitute (Request #3825) for the title, enacting clause, and entire body of the measure.

Submitted by:

Michael Bergstrom  
Senator Bergstrom

I hereby grant permission for the floor substitute to be adopted.

[Signature]  
Senator Pugh, Chair (required)

[Signature]  
Senator Seifried

[Signature]  
Senator Dossett

[Signature]  
Senator Deever

[Signature]  
Senator Hicks

[Signature]  
Senator Hines

[Signature]  
Senator Mann

[Signature]  
Senator Pederson

[Signature]  
Senator Rader

[Signature]  
Senator Reinhardt

[Signature]  
Senator Sacchieri

[Signature]  
Senator Paxton, President Pro Tempore

[Signature]  
Senator Daniels, Majority Floor Leader

Note: Education committee majority requires six (6) members' signatures.

Bergstrom-EB-FS-SB346  
3/20/2026 10:27 AM

(Floor Amendments Only)

Date and Time Filed: 3/23/26

1:55pm Jd

☐ Untimely

☐ Amendment Cycle Extended

☐ Secondary Amendment

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE  
FOR

SENATE BILL NO. 346

By: Bergstrom of the Senate

and

Hays of the House

FLOOR SUBSTITUTE

[ school personnel - record checks - affidavit -  
effective date -

emergency ]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 3-104, as  
last amended by Section 1, Chapter 445, O.S.L. 2025 (70 O.S. Supp.  
2025, Section 3-104), is amended to read as follows:

Section 3-104. A. The supervision of the public school system  
of Oklahoma shall be vested in the State Board of Education and,  
subject to limitations otherwise provided by law, the State Board of  
Education shall:

1. Adopt policies and make rules for the operation of the  
public school system of the state;

1        2. Appoint, prescribe the duties, and fix the compensation of a  
2 secretary, an attorney, and all other personnel necessary for the  
3 proper performance of the functions of the State Board of Education.  
4 The secretary shall not be a member of the Board;

5        3. Submit to the Governor a departmental budget based upon  
6 major functions of the State Department of Education as prepared by  
7 the Superintendent of Public Instruction and supported by detailed  
8 data on needs and proposed operations as partially determined by the  
9 budgetary needs of local school districts filed with the State Board  
10 of Education for the ensuing fiscal year. Appropriations therefor  
11 shall be made in lump-sum form for each major item in the budget as  
12 follows:

- 13            a. State Aid to schools,
  - 14            b. the supervision of all other functions of general and  
15                special education including general control, free  
16                textbooks, school lunch, Indian education, and all  
17                other functions of the Board and an amount sufficient  
18                to adequately staff and administer these services, and
  - 19            c. the Board shall determine the details by which the  
20                budget and the appropriations are administered.
- 21            Annually, the Board shall make preparations to  
22                consolidate all of the functions of the Department in  
23                such a way that the budget can be based on two items,  
24                administration and aid to schools. A maximum amount

1                   for administration shall be designated as a part of  
2                   the total appropriation;

3           4. On the first day of December preceding each regular session  
4 of the Legislature, prepare and deliver electronically to the  
5 Governor and the Legislature a report for the year ending June 30  
6 immediately preceding the regular session of the Legislature. The  
7 report shall contain:

8           a. detailed statistics and other information concerning  
9               enrollment, attendance, expenditures including State  
10              Aid, and other pertinent data for all public schools  
11              in this state,

12          b. reports from each and every division within the State  
13              Department of Education as submitted by the  
14              Superintendent of Public Instruction and any other  
15              division, department, institution, or other agency  
16              under the supervision of the Board,

17          c. recommendations for the improvement of the public  
18              school system of the state,

19          d. a statement of the receipts and expenditures of the  
20              State Board of Education for the past year, and

21          e. a statement of plans and recommendations for the  
22              management and improvement of public schools and such  
23              other information relating to the educational  
24

1 interests of the state as may be deemed necessary and  
2 desirable;

3 5. Provide for the formulation and adoption of curricula,  
4 courses of study, and other instructional aids necessary for the  
5 adequate instruction of pupils in the public schools;

6 6. Have authority in matters pertaining to the licensure and  
7 certification of persons for instructional, supervisory, and  
8 administrative positions and services in the public schools of the  
9 state subject to the provisions of Section 6-184 of this title, and  
10 shall ~~formulate~~ promulgate rules governing the issuance and  
11 revocation of certificates for superintendents of schools,  
12 principals, supervisors, librarians, clerical employees, school  
13 nurses, school bus drivers, visiting teachers, classroom teachers,  
14 and for other personnel performing instructional, administrative,  
15 and supervisory services, but not including members of boards of  
16 education and other employees who do not work directly with pupils,  
17 and may charge and collect reasonable fees for the issuance of such  
18 certificates:

19 a. the State Department of Education shall not issue a  
20 certificate to and shall revoke the certificate of any  
21 person who has been convicted, whether upon a verdict  
22 or plea of guilty or upon a plea of nolo contendere,  
23 or received a suspended sentence or any probationary  
24 term for a crime or an attempt to commit a crime

provided for in Section 843.5 of Title 21 of the Oklahoma Statutes if the offense involved sexual abuse or sexual exploitation as those terms are defined in Section 1-1-105 of Title 10A of the Oklahoma Statutes, Section 741, 843.1, if the offense included sexual abuse or sexual exploitation, 865 et seq., 885, 888, 891, 1021, 1021.2, 1021.3, 1040.13a, 1087, 1088, 1111.1, 1114, or 1123 of Title 21 of the Oklahoma Statutes or who enters this state and who has been convicted, received a suspended sentence, or received a deferred judgment for a crime or attempted crime which, if committed or attempted in this state, would be a crime or an attempt to commit a crime provided for in any of the laws,

b. except as provided for in subparagraph a of this paragraph, the State Board of Education shall have the authority to revoke or suspend a license or certificate only for the following reasons:

- (1) a willful violation of any federal or state law,
- (2) the abuse or neglect of a child,
- (3) moral turpitude, ~~or~~
- (4) a conviction for any of the offenses or basis for revocation set forth in this section and Section 3-104.1 of this title, or

1           (5) a conviction, whether upon a verdict or plea of  
2           guilty or upon a plea of nolo contendere, for  
3           willfully making a false statement in an  
4           affidavit required by Section 5-142 of this  
5           title,

- 6           c. the State Board of Education shall not have the  
7           authority to summarily revoke or suspend a license or  
8           certificate pending an individual proceeding for  
9           revocation or other action unless for a valid  
10          emergency as defined in the Administrative Procedures  
11          Act. Upon initiating a formal investigation, the  
12          State Department of Education shall notify via  
13          certified mail and electronic mail the superintendent  
14          of the school district where the license or  
15          certificate holder is employed. In no event shall the  
16          State Board of Education move to revoke or suspend a  
17          license or certificate, for an emergency or otherwise,  
18          unless the license or certificate holder and any  
19          employing school district received notice via  
20          certified mail and electronic mail within three (3)  
21          days of the date the application was filed with the  
22          State Board of Education, and
- 23          d. all funds collected by the State Department of  
24          Education for the issuance of certificates to

1 instructional, supervisory, and administrative  
2 personnel in the public schools of the state shall be  
3 deposited in the "Teachers' Certification Fund" in the  
4 State Treasury and may be expended by the State Board  
5 of Education to finance the activities of the State  
6 Department of Education necessary to administer the  
7 program, for consultative services, publication costs,  
8 actual and necessary travel expenses as provided in  
9 the State Travel Reimbursement Act incurred by persons  
10 performing research work, and other expenses found  
11 necessary by the State Board of Education for the  
12 improvement of the preparation and certification of  
13 teachers in this state. Provided, any unobligated  
14 balance in the Teachers' Certification Fund in excess  
15 of Ten Thousand Dollars (\$10,000.00) on June 30 of any  
16 fiscal year shall be transferred to the General  
17 Revenue Fund of this state. Until July 1, 1997, the  
18 State Board of Education shall have authority for  
19 approval of teacher education programs. The State  
20 Board of Education shall also have authority for the  
21 administration of teacher residency and professional  
22 development, subject to the provisions of the Oklahoma  
23 Teacher Preparation Act;  
24

1        7. Promulgate rules governing the classification, inspection,  
2 supervision, and accrediting of all public nursery, kindergarten,  
3 elementary and secondary schools, and on-site educational services  
4 provided by public school districts or state-accredited private  
5 schools in partial hospitalization programs, day treatment programs,  
6 and day hospital programs as defined in Section 3-104.7 of this  
7 title and Section 175.20 of Title 10 of the Oklahoma Statutes for  
8 persons between the ages of three (3) and twenty-one (21) years of  
9 age in the state. However, no school shall be denied accreditation  
10 solely on the basis of average daily attendance.

11        Any school district which maintains an elementary school and  
12 faces the necessity of relocating its school facilities because of  
13 construction of a lake, either by state or federal authority, which  
14 will inundate the school facilities, shall be entitled to receive  
15 probationary accreditation from the State Board of Education for a  
16 period of five (5) years after June 12, 1975, and any school  
17 district, otherwise qualified, shall be entitled to receive  
18 probationary accreditation from the State Board of Education for a  
19 period of two (2) consecutive years to attain the minimum average  
20 daily attendance. The Head Start and public nurseries or  
21 kindergartens operated from community action agency funds shall not  
22 be subjected to the accrediting rules of the State Board of  
23 Education. Neither will the State Board of Education make rules  
24 affecting the operation of the public nurseries and kindergartens

1 operated from federal funds secured through community action  
2 agencies even though they may be operating in the public schools of  
3 the state. However, any of the Head Start or public nurseries or  
4 kindergartens operated under federal regulations may make  
5 application for accrediting from the State Board of Education but  
6 will be accredited only if application for the approval of the  
7 programs is made. The status of no school district shall be changed  
8 which will reduce it to a lower classification until due notice has  
9 been given to the proper authorities thereof and an opportunity  
10 given to correct the conditions which otherwise would be the cause  
11 of such reduction.

12 Private and parochial schools may be accredited and classified  
13 in like manner as public schools or, if an accrediting association  
14 is approved by the State Board of Education, by procedures  
15 established by the State Board of Education to accept accreditation  
16 by such accrediting association, if application is made to the State  
17 Board of Education for such accrediting;

18 8. Be the legal agent of this state to accept, in its  
19 discretion, the provisions of any Act of Congress appropriating or  
20 apportioning funds which are now, or may hereafter be, provided for  
21 use in connection with any phase of the system of public education  
22 in Oklahoma. It shall prescribe such rules as it finds necessary to  
23 provide for the proper distribution of such funds in accordance with  
24 the state and federal laws;

1        9. Be and is specifically hereby designated as the agency of  
2 this state to cooperate and deal with any officer, board, or  
3 authority of the United States ~~Government~~ government under any law  
4 of the United States which may require or recommend cooperation with  
5 any state board having charge of the administration of public  
6 schools unless otherwise provided by law;

7        10. Be and is hereby designated as the state educational agency  
8 referred to in Public Law 396 of the 79th Congress of the United  
9 States, as amended, which may be known as the Richard B. Russell  
10 National School Lunch Act, and the State Board of Education is  
11 hereby authorized and directed to accept the terms and provisions of  
12 the act and to enter into such agreements, not in conflict with the  
13 Oklahoma Constitution ~~of Oklahoma~~ or the United States Constitution  
14 and Statutes ~~of the United States~~, as may be necessary or  
15 appropriate to secure for this state the benefits of the school  
16 lunch program established and referred to in the act;

17        11. Have authority to secure and administer the benefits of the  
18 Richard B. Russell National School Lunch Act, Public Law 396 of the  
19 79th Congress of the United States, as amended, in this state and is  
20 hereby authorized to employ or appoint and fix the compensation of  
21 such additional officers or employees and to incur such expenses as  
22 may be necessary for the accomplishment of the above purpose, and  
23 administer the distribution of any state funds appropriated by the  
24

1 Legislature required as federal matching to reimburse on children's  
2 meals;

3 12. Accept and provide for the administration of any land,  
4 money, buildings, gifts, donations, or other things of value which  
5 may be offered or bequeathed to the schools under the supervision or  
6 control of the Board;

7 13. Have authority to require persons having administrative  
8 control of all school districts in Oklahoma to make such regular and  
9 special reports regarding the activities of the schools in the  
10 districts as the Board may deem needful for the proper exercise of  
11 its duties and functions. Such authority shall include the right of  
12 the State Board of Education to withhold all state funds under its  
13 control, to withhold official recognition including accrediting,  
14 until such required reports have been filed and accepted in the  
15 office of the Board and to revoke the certificates of persons  
16 failing or refusing to make such reports;

17 14. Have general supervision of the school lunch program. The  
18 State Board of Education may sponsor workshops for personnel and  
19 participants in the school lunch program and may develop, print, and  
20 distribute free of charge or sell any materials, books, and  
21 bulletins to be used in the school lunch programs. There is hereby  
22 created in the State Treasury a revolving fund for the Board, to be  
23 designated the "School Lunch Workshop Revolving Fund". The fund  
24 shall consist of all fees derived from or on behalf of any

1 participant in any such workshop sponsored by the State Board of  
2 Education, or from the sale of any materials, books, and bulletins,  
3 and funds shall be disbursed for expenses of such workshops and for  
4 developing, printing, and distributing of the materials, books, and  
5 bulletins relating to the school lunch program. The fund shall be  
6 administered in accordance with Section 155 of Title 62 of the  
7 Oklahoma Statutes;

8 15. Prescribe all forms for school district and county officers  
9 to report to the State Board of Education where required. The State  
10 Board of Education shall also prescribe a list of appropriation  
11 accounts by which the funds of school districts shall be budgeted,  
12 accounted for, and expended; and it shall be the duty of the State  
13 Auditor and Inspector in prescribing all budgeting, accounting, and  
14 reporting forms for school funds to conform to such lists;

15 16. Provide for the establishment of a uniform system of pupil  
16 and personnel accounting, records, and reports;

17 17. Have authority to provide for the health and safety of  
18 school children and school personnel while under the jurisdiction of  
19 school authorities;

20 18. Provide for the supervision of the transportation of  
21 pupils;

22 19. Have authority, upon request of the local school board, to  
23 act in behalf of the public schools of the state in the purchase of  
24 transportation equipment;

1        20. Have authority and is hereby required to perform all duties  
2 necessary to the administration of the public school system in  
3 Oklahoma as specified in the Oklahoma School Code; and, in addition  
4 thereto, those duties not specifically mentioned herein if not  
5 delegated by law to any other agency or official;

6        21. Administer the State Public Common School Building  
7 Equalization Fund established by Section 32 of Article X of the  
8 Oklahoma Constitution. Any monies as may be appropriated or  
9 designated by the Legislature, other than ad valorem taxes, any  
10 other funds identified by the State Department of Education, which  
11 may include, but not be limited to, grants-in-aid from the federal  
12 government for building purposes, the proceeds of all property that  
13 shall fall to the state by escheat, penalties for unlawful holding  
14 of real estate by corporations, and capital gains on assets of the  
15 permanent school funds, shall be deposited in the State Public  
16 Common School Building Equalization Fund. The fund shall be used to  
17 aid school districts and charter schools in acquiring buildings,  
18 subject to the limitations fixed by Section 32 of Article X of the  
19 Oklahoma Constitution. It is hereby declared that redbud school  
20 grants disbursed from the State Public Common School Building  
21 Equalization Fund shall be used for the same purposes as a building  
22 fund, as provided for in Section 1-118 of this title. It is hereby  
23 declared that the term "school districts" as used in Section 32 of  
24 Article X of the Oklahoma Constitution shall mean school districts

1 and eligible charter schools as defined in subsection B of this  
2 section. The State Board of Education shall disburse redbud school  
3 grants annually from the State Public Common School Building  
4 Equalization Fund to public schools and eligible charter schools  
5 pursuant to subsection B of this section. The Board shall  
6 promulgate rules for the implementation of disbursing redbud school  
7 grants pursuant to this section. The State Board of Education shall  
8 prescribe rules for making grants of aid from, and for otherwise  
9 administering, the fund pursuant to the provisions of this  
10 paragraph, and may employ and fix the duties and compensation of  
11 technicians, aides, clerks, stenographers, attorneys, and other  
12 personnel deemed necessary to carry out the provisions of this  
13 paragraph. The cost of administering the fund shall be paid from  
14 monies appropriated to the State Board of Education for the  
15 operation of the State Department of Education. From monies  
16 apportioned to the fund, the State Department of Education may  
17 reserve not more than one-half of one percent ( $1/2$  of 1%) for  
18 purposes of administering the fund;

19 22. Recognize that the Director of the Department of  
20 Corrections shall be the administrative authority for the schools  
21 which are maintained in the state reformatories and shall appoint  
22 the principals and teachers in such schools. Provided, that rules  
23 of the State Board of Education for the classification, inspection,  
24 and accreditation of public schools shall be applicable to such

1 schools; and such schools shall comply with standards set by the  
2 State Board of Education; and

3 23. Have authority to administer a revolving fund which is  
4 hereby created in the State Treasury, to be designated the  
5 "Statistical Services Revolving Fund". The fund shall consist of  
6 all monies received from the various school districts of the state,  
7 the United States ~~Government~~ government, and other sources for the  
8 purpose of furnishing or financing statistical services and for any  
9 other purpose as designated by the Legislature. The State Board of  
10 Education is hereby authorized to enter into agreements with school  
11 districts, municipalities, the United States ~~Government~~ government,  
12 foundations, and other agencies or individuals for services,  
13 programs, or research projects. The Statistical Services Revolving  
14 Fund shall be administered in accordance with Section 155 of Title  
15 62 of the Oklahoma Statutes.

16 B. 1. The redbud school grants shall be determined by the  
17 State Department of Education as follows:

18 a. divide the county four-mill levy revenue by four to  
19 determine the nonchargeable county four-mill revenue  
20 for each school district,

21 b. determine the amount of new revenue generated by the  
22 five-mill building fund levy as authorized by Section  
23 10 of Article X of the Oklahoma Constitution for each  
24

- 1 school district as reported in the Oklahoma Cost  
2 Accounting System for the preceding fiscal year,
- 3 c. add the amounts calculated in subparagraphs a and b of  
4 this paragraph to determine the nonchargeable millage  
5 for each school district,
- 6 d. add the nonchargeable millage in each district  
7 statewide as calculated in subparagraph c of this  
8 paragraph and divide the total by the average daily  
9 membership in public schools statewide based on the  
10 preceding school year's average daily membership,  
11 according to the provisions of Section 18-107 of this  
12 title. This amount is the statewide nonchargeable  
13 millage per student, known as the baseline local  
14 funding per student,
- 15 e. all eligible charter schools shall be included in  
16 these calculations as unique school districts,  
17 separate from the school district that may sponsor the  
18 eligible charter school, and the total number of  
19 districts shall be used to determine the statewide  
20 average baseline local funding per student,
- 21 f. for each school district or eligible charter school  
22 which is below the baseline local funding per student,  
23 the Department shall subtract the baseline local  
24 funding per student from the average nonchargeable

1 millage per student of the school district or eligible  
2 charter school to determine the nonchargeable millage  
3 per student shortfall for each district, and

4 g. the nonchargeable millage per student shortfall for a  
5 school district or eligible charter school shall be  
6 multiplied by the average daily membership of the  
7 preceding school year of the eligible school district  
8 or eligible charter school. This amount shall be the  
9 redbud school grant amount for the school district or  
10 eligible charter school.

11 2. For fiscal year 2022, monies for the redbud school grants  
12 shall be expended from the funds apportioned pursuant to Section 426  
13 of Title 63 of the Oklahoma Statutes. For fiscal year 2023 and each  
14 subsequent fiscal year, monies for the redbud school grants shall be  
15 appropriated pursuant to Section 426 of Title 63 of the Oklahoma  
16 Statutes, not to exceed three-fourths (3/4) of the tax collected in  
17 the preceding fiscal year pursuant to Section 426 of Title 63 of the  
18 Oklahoma Statutes as determined by the Oklahoma Tax Commission. For  
19 fiscal year 2023 and each subsequent fiscal year, if such  
20 appropriated funds are insufficient to fund the redbud school  
21 grants, then an additional apportionment of funds shall be made from  
22 sales tax collections as provided by subsection D of Section 1353 of  
23 Title 68 of the Oklahoma Statutes. If both funds are insufficient,  
24 the Department shall promulgate rules to permit a decrease to the

1 baseline local funding per student to the highest amount allowed  
2 with the funding available.

3 3. As used in this section, "eligible charter school" shall  
4 mean a charter school which is sponsored pursuant to the provisions  
5 of the Oklahoma Charter Schools Act. Provided, however, eligible  
6 charter school shall not include a statewide virtual charter school  
7 sponsored by the Statewide Charter School Board but shall only  
8 include those which provide in-person or blended instruction, as  
9 provided by Section 1-111 of this title, to not less than two-thirds  
10 (2/3) of students as the primary means of instructional service  
11 delivery.

12 4. The Department shall develop a program to acknowledge the  
13 redbud school grant recipients and shall include elected members of  
14 the House of Representatives and Senate who represent the school  
15 districts and eligible charter schools.

16 5. The Department shall create a dedicated page on its website  
17 listing annual redbud school grant recipients, amount awarded to  
18 each recipient, and other pertinent information about the Redbud  
19 School Funding Act.

20 6. The Department shall provide the ~~chair~~ Chair of the House  
21 Appropriations and Budget Committee and the ~~chair~~ Chair of the  
22 Senate Appropriations Committee no later than February 1 of each  
23 year with an estimate of the upcoming year's redbud school grant  
24 allocation as prescribed by this section.

1       SECTION 2.       AMENDATORY       70 O.S. 2021, Section 5-142, as  
2 amended by Section 3, Chapter 101, O.S.L. 2025 (70 O.S. Supp. 2025,  
3 Section 5-142), is amended to read as follows:

4       Section 5-142. A. Except as otherwise provided for in  
5 subsection F of this section, for purposes of employment, a board of  
6 education may request in writing to the State Board of Education  
7 that a national criminal history record check be conducted of any  
8 employee of the school and shall request such information for any  
9 person seeking employment with the school; provided, that a board of  
10 education shall not be required to obtain a new criminal history  
11 record check for an individual who has obtained certification from  
12 the State Department of Education within the previous twelve (12)  
13 months. The Oklahoma State Bureau of Investigation (OSBI) shall  
14 obtain fingerprints of the employee or prospective employee and  
15 require that the person pay a search fee not to exceed Fifty Dollars  
16 (\$50.00) or the cost of the search, whichever is the lesser amount.  
17 The fee shall be deposited in the OSBI Revolving Fund. School  
18 districts may reimburse employees for the cost of the search. The  
19 State Board of Education shall contact the OSBI for any national  
20 criminal history record of the person within fourteen (14) working  
21 days of receiving a written request from the board of education.

22       B. The Oklahoma State Bureau of Investigation shall provide the  
23 national criminal history record check requested by the State Board  
24 of Education within fourteen (14) working days from the receipt of

1 the request. The Bureau may contact the Federal Bureau of  
2 Investigation to obtain the information requested.

3 C. The State Board of Education shall provide the information  
4 received from the Oklahoma State Bureau of Investigation to the  
5 board of education within fourteen (14) days from the receipt of the  
6 information. The State Board of Education shall provide any follow-  
7 up information received from the OSBI concerning a person for whom a  
8 national criminal history record check was requested to the  
9 employing board of education.

10 D. For the purpose of this section:

11 1. "Board of education" includes both public and private boards  
12 of education within or outside this state;

13 2. "Employing agency" means a political subdivision or law  
14 enforcement agency in this state;

15 3. "Law enforcement officer" means a peace or police officer  
16 who is certified by the Council on Law Enforcement Education and  
17 Training;

18 4. "National criminal history record check" means a national  
19 criminal history record check as defined in Section 150.9 of Title  
20 74 of the Oklahoma Statutes; and

21 5. "Prospective employee" means an individual who has received  
22 an offer of temporary employment from a school district pending the  
23 results of the national criminal history record check.  
24

1 E. Each public board of education within this state shall  
2 promulgate a statement regarding the felony record search policy for  
3 that school district. The policy may permit temporary employment of  
4 prospective employees for a maximum of sixty (60) days pending  
5 receipt of results of national criminal history record check  
6 requests. The temporary employment of the prospective employee  
7 shall terminate after sixty (60) days unless the school district  
8 receives the results of the national criminal history record check.  
9 The sixty-day temporary employment period shall begin on the first  
10 day the prospective employee reports for duty at the employing  
11 school district. Prospective employees shall be notified of the  
12 requirement, the fee, and the reimbursement policy when first  
13 interviewed concerning employment. The school district's  
14 reimbursement policy shall provide, at a minimum, that employees  
15 shall be promptly reimbursed in full for the fee if employed by the  
16 district at the time the national criminal history record check  
17 request is made unless the person was employed pending receipt of  
18 results.

19 F. 1. Any person who has been employed as a full-time teacher  
20 by a school district in this state and applies for employment as a  
21 full-time teacher in a school district in this state may not be  
22 required to have a national criminal history record check if the  
23 teacher produces a copy of a national criminal history record check  
24 completed within the preceding five (5) years and ~~a letter~~ an

1 affidavit from the school district in which the teacher was employed  
2 stating the teacher left in good standing and. The affidavit shall  
3 attest as to whether the teacher was the subject of any allegation  
4 of inappropriate behavior with a student and whether there was a  
5 pending or ongoing investigation of inappropriate behavior between  
6 the teacher and a student. If an allegation of inappropriate  
7 behavior was investigated by an employing school district, the  
8 affidavit shall state whether the allegation was substantiated,  
9 unsubstantiated, or closed with no finding of misconduct. The  
10 affidavit shall include contact information for the prior employing  
11 school district, which the prospective employing school district  
12 shall contact to determine the validity of the submitted affidavit.

13 2. For any person applying for employment as a substitute  
14 teacher, a national criminal history record check shall be required  
15 for the school year; provided, however, a board of education may  
16 choose whether to require a national criminal history record check  
17 from a prospective substitute teacher who has been employed by the  
18 school district in the last year. Any person applying for  
19 employment as a substitute teacher in more than one school district  
20 shall only be required to have one national criminal history record  
21 check, and, upon the request of the substitute teacher, that record  
22 check shall be sent to all other school districts in which the  
23 substitute teacher is applying to teach.

1        3. Any person employed as a full-time teacher by a school  
2 district in this state in the five (5) years immediately preceding  
3 an application for employment as a substitute teacher may not be  
4 required to have a national criminal history record check, if the  
5 teacher produces a copy of a national criminal history record check  
6 completed within the preceding five (5) years and ~~a letter~~ an  
7 affidavit from the school district in which the teacher was last  
8 employed stating the teacher left in good standing ~~and~~. The  
9 affidavit shall attest as to whether the teacher was the subject of  
10 any allegation of inappropriate behavior with a student and whether  
11 there was a pending or ongoing investigation of inappropriate  
12 behavior between the teacher and a student. If an allegation of  
13 inappropriate behavior was investigated by an employing school  
14 district, the affidavit shall state whether the allegation was  
15 substantiated, unsubstantiated, or closed with no finding of  
16 misconduct. The affidavit shall include contact information for the  
17 prior employing school district, which the prospective employing  
18 school district shall contact to determine the validity of the  
19 submitted affidavit.

20        4. Any person employed as a substitute teacher by a school  
21 district in this state for a minimum of five (5) years immediately  
22 preceding an application for employment as a full-time teacher in a  
23 school district in this state may not be required to have a national  
24 criminal history record check if the teacher produces a copy of a

1 national criminal history record check completed within the  
2 preceding five (5) years and a letter from the school district in  
3 which the teacher was employed as a substitute teacher stating the  
4 teacher left in good standing and whether the teacher was the  
5 subject of any allegation of inappropriate behavior with a student.

6 5. Any person employed as a full-time teacher by a school  
7 district in this state for ten (10) or more consecutive years  
8 immediately preceding an application for employment as a substitute  
9 teacher in the same school district may not be required to have a  
10 national criminal history record check for as long as the person  
11 remains employed for consecutive years by that school district as a  
12 substitute teacher, if the teacher left full-time employment in good  
13 standing. If the teacher applies for employment as a substitute  
14 teacher in another school district, a national criminal history  
15 record check shall be required.

16 G. 1. Except as otherwise provided by this subsection, any  
17 teacher employed by an Oklahoma school district prior to May 19,  
18 2020, who does not have an Oklahoma criminal history record check  
19 from the Oklahoma State Bureau of Investigation as well as a  
20 national criminal history record check, as defined in Section 150.9  
21 of Title 74 of the Oklahoma Statutes, on file with his or her  
22 employing district as required by this section shall complete the  
23 criminal history record checks upon the next renewal of his or her  
24 standard teaching certificate as required by Section 6-154.1 of this

1 title or State Board of Education administrative rules promulgated  
2 thereto.

3 2. Except as otherwise provided by this subsection, any other  
4 person employed by an Oklahoma school district prior to May 19,  
5 2020, who does not have an Oklahoma criminal history record check  
6 from the Oklahoma State Bureau of Investigation as well as a  
7 national criminal history record check, as defined in Section 150.9  
8 of Title 74 of the Oklahoma Statutes, on file with his or her  
9 employing district as required by this section shall have until July  
10 1, 2022, to complete the criminal history record checks.

11 3. Any teacher eligible to retire from the Teachers' Retirement  
12 System of Oklahoma who does not have an Oklahoma criminal history  
13 record check from the Oklahoma State Bureau of Investigation as well  
14 as a national criminal history record check, as defined in Section  
15 150.9 of Title 74 of the Oklahoma Statutes, on file with his or her  
16 employing district as required by this section shall complete the  
17 criminal history record checks by the earlier of the following  
18 dates:

19 a. July 1, 2022, or

20 b. at the next renewal of his or her standard teaching  
21 certificate as required by Section 6-154.1 of this  
22 title or State Board of Education administrative rules  
23 promulgated thereto.  
24

1       H. Any person who willfully submits an affidavit required by  
2 paragraphs 1 and 3 of subsection F of this section which the person  
3 knows to be false shall, upon conviction, be guilty of a misdemeanor  
4 punishable by imprisonment in the county jail for not more than one  
5 (1) year, or by a fine not more than Five Hundred Dollars (\$500.00),  
6 or by both such imprisonment and fine.

7       I. A board of education shall be prohibited from hiring a full-  
8 time teacher who fails to provide the affidavit required by  
9 paragraphs 1 and 3 of subsection F of this section.

10       J. The provisions of this section shall not apply to technology  
11 center employees hired on a part-time or temporary basis for the  
12 instruction of adult students only.

13       ~~I.~~ K. The provisions of this section shall not apply to law  
14 enforcement officers who are employed by an employing agency at the  
15 time of application for employment at a public school district.

16       ~~J.~~ L. Nothing in this section shall be construed to impose  
17 liability on school districts, except in negligence, for employing  
18 prospective employees within the sixty-day temporary employment  
19 window pending the results of the national criminal history record  
20 check.

21       SECTION 3. This act shall become effective July 1, 2026.

22       SECTION 4. It being immediately necessary for the preservation  
23 of the public peace, health, or safety, an emergency is hereby  
24

1 declared to exist, by reason whereof this act shall take effect and  
2 be in full force from and after its passage and approval.

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